

EMERGENCY PROVISIONS

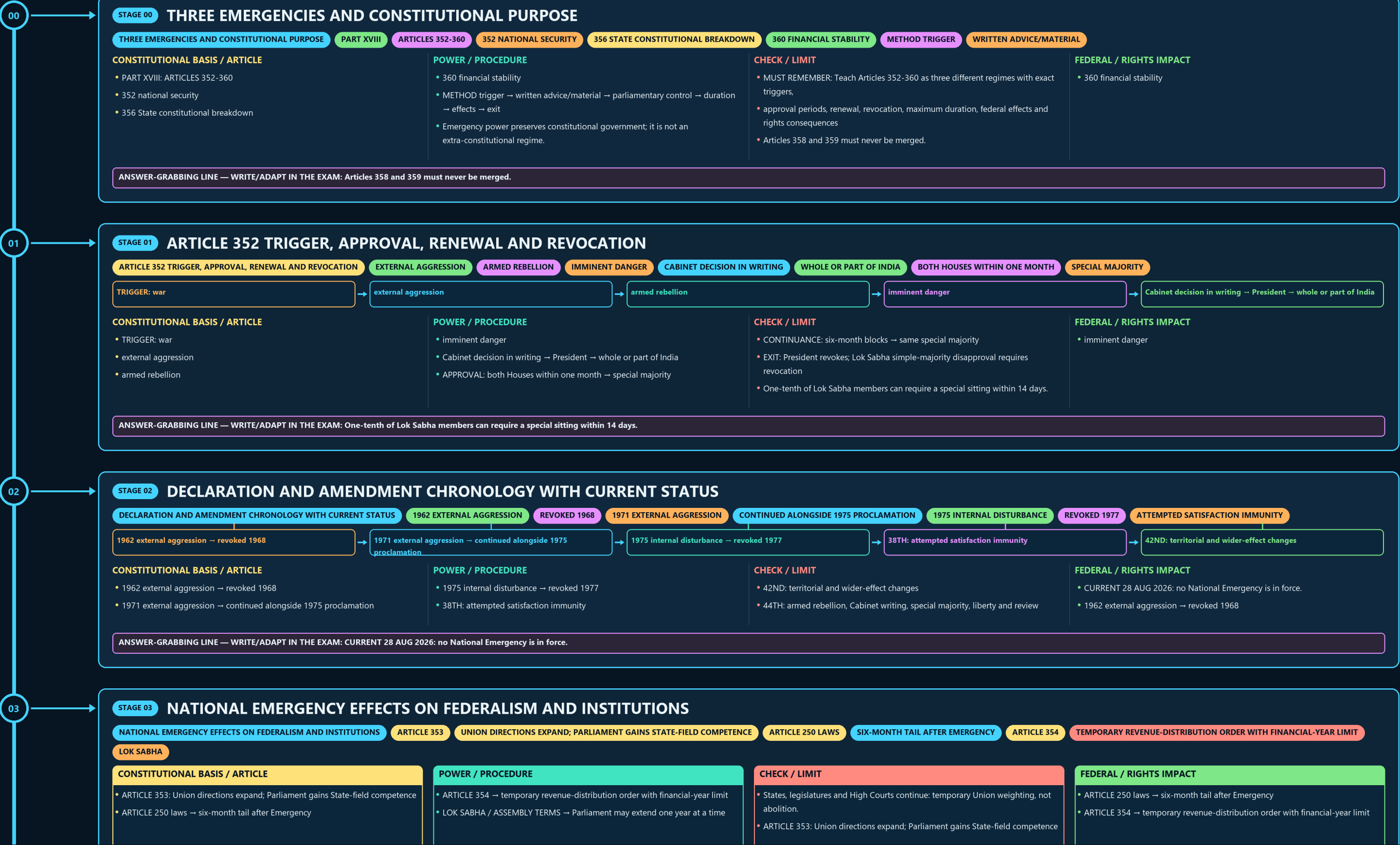
THREE EMERGENCIES AND CONSTITUTIONAL → ARTICLE 352 TRIGGER, APPROVAL → DECLARATION AND AMENDMENT CHRONOLOGY → NATIONAL EMERGENCY EFFECTS ON → ARTICLES 358 AND 359 → ADM JABALPUR (1976), KHANNA

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g4 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



03

STAGE 03

NATIONAL EMERGENCY EFFECTS ON FEDERALISM AND INSTITUTIONS

NATIONAL EMERGENCY EFFECTS ON FEDERALISM AND INSTITUTIONS

ARTICLE 353

UNION DIRECTIONS EXPAND; PARLIAMENT GAINS STATE-FIELD COMPETENCE

ARTICLE 250 LAWS

SIX-MONTH TAIL AFTER EMERGENCY

ARTICLE 354

TEMPORARY REVENUE-DISTRIBUTION ORDER WITH FINANCIAL-YEAR LIMIT

LOK SABHA

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 353: Union directions expand; Parliament gains State-field competence

ARTICLE 250 laws → six-month tail after Emergency

POWER / PROCEDURE

ARTICLE 354 → temporary revenue-distribution order with financial-year limit

LOK SABHA / ASSEMBLY TERMS → Parliament may extend one year at a time

CHECK / LIMIT

States, legislatures and High Courts continue: temporary Union weighting, not abolition.

ARTICLE 353: Union directions expand; Parliament gains State-field competence

FEDERAL / RIGHTS IMPACT

ARTICLE 250 laws → six-month tail after Emergency

ARTICLE 354 → temporary revenue-distribution order with financial-year limit

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: States, legislatures and High Courts continue: temporary Union weighting, not abolition.

04

STAGE 04

ARTICLES 358 AND 359 RIGHTS FIREWALL

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ARTICLE 358 AUTOMATIC

ARTICLE 19 ONLY

WAR/EXTERNAL AGGRESSION

EMERGENCY-RELATED RECITAL/ACTION

ARTICLE 359 PRESIDENTIAL ORDER

NAMED RIGHTS' COURT-ENFORCEMENT ROUTE

STATED AREA/PERIOD

ARTICLE 358 automatic	Article 19 only	war/external aggression	emergency-related recital/action
ARTICLE 359 presidential order	named rights' court-enforcement route	stated area/period	

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 358 automatic

Article 19 only

war/external aggression

POWER / PROCEDURE

emergency-related recital/action

ARTICLE 359 presidential order

named rights' court-enforcement route

CHECK / LIMIT

stated area/period

PERMANENT FIREWALL

Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

FEDERAL / RIGHTS IMPACT

emergency-related recital/action

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

05

STAGE 05

ADM JABALPUR (1976), KHANNA AND K.S. PUTTASWAMY (2017)

ADM JABALPUR (1976), KHANNA AND K.S. PUTTASWAMY (2017)

ADM JABALPUR (1976) MAJORITY DENIED HABEAS ENFORCEMENT ROUTE DURING

JUSTICE H.R. KHANNA

LIBERTY IS NOT EXECUTIVE GRACE

44TH AMENDMENT

ARTICLES 20 AND 21 EXCLUDED FROM ARTICLE 359

K.S. K.S. PUTTASWAMY (2017)

ADM JABALPUR (1976) MAJORITY WRONGLY DECIDED AND OVERRULED

ADM JABALPUR (1976) MAJORITY denied habeas enforcement route during the operative Article 359 order

JUSTICE H.R. KHANNA → liberty is not executive grace

44TH AMENDMENT → Articles 20 and 21 excluded from Article 359

K.S. K.S. PUTTASWAMY (2017) → ADM Jabalpur (1976) majority wrongly decided and overruled

Historical warning, not current law.

CONSTITUTIONAL BASIS / ARTICLE

ADM JABALPUR (1976) MAJORITY denied habeas enforcement route during the operative Article 359 order

JUSTICE H.R. KHANNA → liberty is not executive grace

POWER / PROCEDURE

44TH AMENDMENT → Articles 20 and 21 excluded from Article 359

K.S. K.S. PUTTASWAMY (2017) → ADM Jabalpur (1976) majority wrongly decided and overruled

CHECK / LIMIT

Historical warning, not current law.

CLOSE DISTINCTION: The 44th Amendment replaced internal disturbance with armed rebellion, requires written Cabinet advice, protects Articles 20

FEDERAL / RIGHTS IMPACT

Article 356 still has its own six-month approval cycle.

ADM JABALPUR (1976) MAJORITY denied habeas enforcement route during the operative Article 359 order

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: The 44th Amendment replaced internal disturbance with armed rebellion, requires written Cabinet advice, protects Articles 20 and 21, narrows Article 358 to war/external aggression and creates the Lok Sabha revocation route; Article 356 still has its own six-month approval cycle.

06

STAGE 06

PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

ARTICLE 356

GOVERNOR REPORT OR OTHERWISE

OBJECTIVE MATERIAL

TWO MONTHS, SIMPLE MAJORITY

SIX MONTHS

THREE YEARS

BEYOND ONE YEAR

ARTICLE 356: Governor report or otherwise → objective material → proclamation

APPROVAL: two months, simple majority

renewal: six months

maximum: three years

BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 356: Governor report or otherwise → objective material → proclamation

APPROVAL: two months, simple majority

POWER / PROCEDURE

renewal: six months

maximum: three years

CHECK / LIMIT

BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification

ARTICLE 357: Parliament may confer and permit delegation of State legislative power

FEDERAL / RIGHTS IMPACT

Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue

Article 365 may supply material, never an automatic trigger.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 365 may supply material, never an automatic trigger.

EMERGENCY PROVISIONS • TILE 2/4 • same master rows 2614-5848 of 11076 • continues below

06

STAGE 06 PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

ARTICLE 356

GOVERNOR REPORT OR OTHERWISE

OBJECTIVE MATERIAL

TWO MONTHS, SIMPLE MAJORITY

SIX MONTHS

THREE YEARS

BEYOND ONE YEAR

ARTICLE 356: Governor report or otherwise → objective material → proclamation

APPROVAL: two months, simple majority

renewal: six months

maximum: three years

BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 356: Governor report or otherwise → objective material → proclamation
- APPROVAL: two months, simple majority

POWER / PROCEDURE

- renewal: six months
- maximum: three years

CHECK / LIMIT

- BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification
- ARTICLE 357: Parliament may confer and permit delegation of State legislative power

FEDERAL / RIGHTS IMPACT

- Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue
- Article 365 may supply material, never an automatic trigger.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 365 may supply material, never an automatic trigger.

07

STAGE 07 S.R. BOMMAI (1994), RAMESHWAR PRASAD (2006) AND CURRENT ARTICLE 356 CONTROL

S.R. BOMMAI (1994), RAMESHWAR PRASAD (2006) AND CURRENT ARTICLE

S.R. BOMMAI (1994) REVIEW

RELEVANT MATERIAL

FLOOR TEST

DISSOLUTION AFTER APPROVAL

RAMESHWAR PRASAD (2006)

BIHAR DISSOLUTION INVALID; ASSEMBLY NOT RESTORED BECAUSE ELECTION PROCESS

WHY USE DECLINED COURTS + COALITIONS + REGIONAL PARTIES

CONSTITUTIONAL BASIS / ARTICLE

- S.R. BOMMAI (1994) review
- relevant material

POWER / PROCEDURE

- floor test
- dissolution after approval

CHECK / LIMIT

- RAMESHWAR PRASAD (2006)
- Bihar dissolution invalid; Assembly not restored because election process had advanced

FEDERAL / RIGHTS IMPACT

- WHY USE DECLINED courts + coalitions + regional parties + Sarkaria/Punchhi norms
- CURRENT: Manipur President's Rule 13 Feb 2025 → revoked 4 Feb 2026.

MECHANISM / VERDICT — CURRENT: Manipur President's Rule 13 Feb 2025 → revoked 4 Feb 2026.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Manipur President's Rule 13 Feb 2025 → revoked 4 Feb 2026.

08

STAGE 08 ARTICLE 360 FINANCIAL EMERGENCY

ARTICLE 360 FINANCIAL EMERGENCY

FINANCIAL STABILITY OR CREDIT OF INDIA OR ANY PART

BOTH HOUSES WITHIN TWO MONTHS BY SIMPLE MAJORITY

NO PERIODIC RENEWAL; PRESIDENT MAY REVOKE

FINANCIAL PROPRIETY

SALARY REDUCTIONS

STATE MONEY/FINANCIAL BILLS RESERVED

UNION SALARY DIRECTION CAN INCLUDE SUPREME COURT AND HIGH

CONSTITUTIONAL BASIS / ARTICLE

- TRIGGER: financial stability or credit of India or any part threatened
- APPROVAL: both Houses within two months by simple majority

POWER / PROCEDURE

- DURATION: no periodic renewal; President may revoke
- DIRECTIONS: financial propriety

CHECK / LIMIT

- salary reductions
- State Money/financial Bills reserved

FEDERAL / RIGHTS IMPACT

- Union salary direction can include Supreme Court and High Court judges
- STATUS: never proclaimed; 1991 was managed without Article 360.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS: never proclaimed; 1991 was managed without Article 360.

09

STAGE 09 THREE-WAY COMPARISON AND LAST-RESORT ALTERNATIVES

THREE-WAY COMPARISON AND LAST-RESORT ALTERNATIVES

SPECIAL MAJORITY

SIX-MONTH RENEWAL

NATIONAL/FEDERAL/RIGHTS EFFECTS

SIMPLE MAJORITY

THREE-YEAR MAXIMUM

STATE MACHINERY

NO RENEWAL CYCLE

352: special majority

six-month renewal

national/federal/rights effects

356: simple majority

six-month renewal

three-year maximum

State machinery

360: simple majority

no renewal cycle

financial directions

CONSTITUTIONAL BASIS / ARTICLE

- 352: special majority
- six-month renewal
- national/federal/rights effects

POWER / PROCEDURE

- 356: simple majority
- three-year maximum
- State machinery

CHECK / LIMIT

- 360: simple majority
- no renewal cycle
- financial directions

FEDERAL / RIGHTS IMPACT

- ESCALATION LADDER warning → consultation → floor test/court → targeted ordinary law → Emergency
- Sarkaria and Punchhi recommendations guide restraint but are not binding law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Sarkaria and Punchhi recommendations guide restraint but are not binding law.

10

STAGE 10 SIX PYQS AND PRELIMS FIREWALLS

SIX PYQS AND PRELIMS FIREWALLS

PYQ ROUTES

2018 FINANCIAL EMERGENCY + ARTICLE 356 CONSEQUENCES

2020 CENTRALISING LEGISLATION

2023 ARTICLE 355/DETENTION/POTA + ARTICLE 356 DECLINE

2024 CONSTITUTION-PART IDENTIFICATION

FIREWALLS ARMED REBELLION

INTERNAL DISTURBANCE

• 352: special majority • six-month renewal • national/federal/rights effects	• 356: simple majority • three-year maximum • State machinery	• 360: simple majority • no renewal cycle • financial directions	• ESCALATION LADDER warning → consultation → floor test/court → targeted ordinary law → Emergency • Sarkaria and Punchhi recommendations guide restraint but are not binding law.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Sarkaria and Punchhi recommendations guide restraint but are not binding law.			

10

STAGE 10 SIX PYQS AND PRELIMS FIREWALLS			
SIX PYQS AND PRELIMS FIREWALLS	PYQ ROUTES	2018 FINANCIAL EMERGENCY + ARTICLE 356 CONSEQUENCES	2020 CENTRALISING LEGISLATION
PYQ ROUTES			
2018 Financial Emergency + Article 356 consequences		2020 centralising legislation	
2023 Article 355/detention/POTA + Article 356 decline		2024 CONSTITUTION-PART IDENTIFICATION	
FIREWALLS ARMED REBELLION		INTERNAL DISTURBANCE	
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• PYQ ROUTES • 2018 Financial Emergency + Article 356 consequences • 2020 centralising legislation	• 2023 Article 355/detention/POTA + Article 356 decline • 2024 Constitution-Part identification • FIREWALLS armed rebellion != internal disturbance	• 358 != 359 • 20/21 protected • 352 special majority	• 356/360 simple • 360 never used • High Court not assumed.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 352 special majority 356/360 simple 360 never used High Court not assumed.			

11

STAGE 11 MARKS-SCALED ANSWER SPINE AND QUALIFIED VERDICT			
MARKS-SCALED ANSWER SPINE AND QUALIFIED VERDICT	10 MARKS	15 MARKS	LEGAL FACTORS
POLITICAL FACTORS			
20 MARKS			
352 + RIGHTS + 356 + 360			
GRADED CONCLUSION			
10 MARKS: provision → trigger → procedure → effects → status/verdict	15 MARKS: thesis → legal factors → political factors → case/commission → verdict		20 MARKS: 352 + rights + 356 + 360 → safeguards → limits → graded
EVIDENCE CHAIN claim → Article/amendment → mechanism → case/history → qualification		VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of	
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• 10 MARKS: provision → trigger → procedure → effects → status/verdict • 15 MARKS: thesis → legal factors → political factors → case/commission → verdict • 20 MARKS: 352 + rights + 356 + 360 → safeguards → limits → graded conclusion	• EVIDENCE CHAIN claim → Article/amendment → mechanism → case/history → qualification • VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary democratic government. • LEGAL/SOURCE LIMIT: As of 5 September 2026 no National or Financial Emergency was located in force.	• The Gazette proclamation of 4 February 2026 revoked the Manipur Article 356 proclamation • retain S.R. • S.R. Bommai (1994) review and floor-test discipline without converting every political crisis into constitutional breakdown.	• EVIDENCE CHAIN claim → Article/amendment → mechanism → case/history → qualification
MECHANISM / VERDICT — VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary democratic government.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary democratic government.			

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

16. SAFETY-VALVE VERSUS CONSTITUTIONAL DICTATORSHIP - OPTIONAL

17. CONSTITUTIONAL DICTATORSHIP AS A DESIGN PROBLEM - OPTIONAL

[ANALYSIS] BOTH SIDES ARE PARTLY CORRECT

A CONSTITUTION NEEDS CRISIS CAPACITY, BUT

UNCHECKED CRISIS POWER CAN DESTROY THE ORDER IT CLAIMS

[ANALYSIS] THE MODERN ANSWER SHOULD JUDGE THE PROVISIONS TOGETHER

EMERGENCY POWER CONCENTRATES AUTHORITY TEMPORARILY UNDER LEGAL FORMS.

OPTIONAL DOCTRINE / CASE

- 16. Safety-valve versus constitutional dictatorship - optional
- 17. Constitutional dictatorship as a design problem - optional
- [ANALYSIS] Both sides are partly correct: a Constitution needs crisis capacity, but
- unchecked crisis power can destroy the order it claims to preserve.

ADVANCED LIMIT

- [ANALYSIS] The modern answer should judge the provisions together with 44th Amendment safeguards, judicial review and political federalism.
- Emergency power concentrates authority temporarily under legal forms.
- The risk is normalisation: crisis standards may become ordinary governance.
- Procedural safeguards, sunset/renewal, reasons, parliamentary opposition, judicial access and protected rights prevent normalisation.

COMPARATIVE NUANCE

- India's strongest design choice is not merely special-majority approval but non-suspendable Articles 20 and 21.
- The remaining weakness is information asymmetry: Parliament and courts depend on executive material concerning threat and State breakdown.
- Safety-valve versus constitutional dictatorship - optional | Critic/defender | Argument use | |--|---| | H.V.
- Kamath | Risk of totalitarian/police State || K.T.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.